

2016 SCC OnLine All 4727

In the High Court of Allahabad

(BEFORE SUDHIR AGARWAL AND DR KAUSHAL JAYENDRA THAKER, JJ.)

Shri Gautam Motors Pvt. Ltd. ... Petitioner;

Versus

U.P. Power Corporation Ltd. and Others ...
Respondent.

Writ - C No. - 12076 of 2004

Decided on December 14, 2016

Advocates who appeared in this case:

Counsel for Petitioner:- Syed Ali Murtuza, B.C. Rai, Z.M. Naiyar

Counsel for Respondent:- Amrit. Lal. Yadav

The Judgment of the Court was delivered by

SUDHIR AGARWAL, J. and DR KAUSHAL JAYENDRA THAKER, J.:— Heard Shri Deepak Kumar Pandey holding brief of Shri B.C. Rai, learned counsel for petitioner, Shri Shrawan Kumar Tripathi, learned counsel for respondents and perused the record.

2. By means of this writ petition under Article 226 of the Constitution of India following reliefs have been sought:

“A). to issue a writ of Certiorari quashing the report dated 19.02.2004 (Annexure - 8) and the consequent bill recovery of Rs. 5,93,227/- (Annexure - 9) in respect of installation No. HP - 24 situate at Bharwa Sumerpur, Dist. Hamirpur (U.P.).

B). to issue a writ of prohibition restraining the respondents from recovering Rs. 5,93,227/- on the basis of the inspection report dated 19.2.2004 (Annexure-8) and the consequent bill received on 18.3.2004 (Annexure - 9).

C). to issue a writ of mandamus directing the respondents to grant adjustment of the excess amount of Rs. 1.00 lakh realized from the petitioner pursuant to Annexure-3.

D). to grant any other writ order or direction, which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

E). to award the cost of writ petition.”

3. The only question raised in this writ petition is whether electricity bill can be raised on the basis of check meter or not.

4. Learned counsel for petitioner stated that there is no such provision and also relied on following authorities in support of his submission:—

- (i). (2009) 1 ADJ 430 (DB) : *Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited*;
- (ii). (1997) 6 SCC 740 : *Belwal Spinning Mills Ltd. v. U.P. State Electricity Board*; and
- (iii). (2003) 4 SCC 172 : *Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India*.

5. Learned counsel for U.P. Power Corporation Limited very fairly admitted that there is no provision either under U.P. Electricity Supply Code or the Electricity Act, 2003 that electricity bill can be raised on the basis of check meter.

6. In view thereof, writ petition is allowed and impugned demand dated 19.02.2004 (Annexure - 8) and the consequent bill for recovery of Rs. 5,93,227/- (Annexure - 9) are hereby set aside.

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